



Sunday Theatre Act 1972

1972 CHAPTER 26

An Act to permit and regulate the opening and use of theatres on Sundays, and for purposes connected therewith. [11th May 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. No person shall be guilty of an offence or subject to any penalty under the Sunday Observance Act 1780 by reason of his having managed, conducted, assisted at, or otherwise taken part in or attended or advertised the performance of any play on a Sunday at premises

(a) licensed under the Theatres Act 1968; or

1968 c. 54.

(b) in respect of which a licensing authority may impose requirements by notice in writing under section 17(2) of the Theatres Act 1968 (which relates to plays performed at premises under the authority of letters patent)

nor shall the said Act of 1780 apply to those premises by reason of the performance therein of any play on a Sunday.

2.—(1) No premises in respect of which a licence under the Theatres Act 1968 is for the time being in force or in respect of which a licensing authority have power to impose conditions in writing under section 17(2) of the Theatres Act 1968 shall be used for the public performance of any play on a Sunday—

Restriction on the hours of plays on Sundays.

(a) between the hours of three in the morning and two in the afternoon if the premises are in any part of the inner London area which is designated by an order made for the purposes of this paragraph by the Secretary of State; or

(b) between the hours of two in the morning and two in the afternoon if the premises are in any part of England or Wales other than a part of the inner London area so designated.

1964 c. 42.

(2) In this section "the inner London area" means the area which for the time being constitutes the inner London area for the purposes of the Administration of Justice Act 1964.

(3) For the purposes of this section premises shall be deemed to be used for the public performance of a play at any time during which members of the public are present in the auditorium of the premises in connection with such a public performance.

Enforcement
of section 2.

1968 c. 54.

3.—(1) If the provisions of section 2 above are contravened in relation to any premises the holder of the licence in respect of those premises under the Theatres Act 1968 or the holder for the time being of the relevant letters patent (as the case may be) shall be guilty of an offence.

(2) A person guilty of an offence under subsection (1) above shall be liable on summary conviction to a fine not exceeding £200 or to imprisonment for a term not exceeding three months or both.

Orders.

4.—(1) The power conferred by section 2(1)(a) above to make an order shall include power to vary or revoke the order by a subsequent order.

(2) The power to make an order under this Act shall be exercisable by statutory instrument; and any statutory instrument containing any such order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation.

5.—(1) In this Act the expressions "licensing authority", "play" and "premises" have the same meanings respectively as in the Theatres Act 1968.

(2) Any reference in this Act to any enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

Short title,
extent and
commence-
ment.

6.—(1) This Act may be cited as the Sunday Theatre Act 1972.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into force at the expiration of a period of one month beginning with the date of its passing.